

JACKSON, J., dissenting

not do; no one has to worry about characterizing any criminal conduct as official or unofficial in order to assess the applicability of an immunity at the outset.

The majority's new Presidential accountability model is also distinct insofar as it accepts as a basic starting premise that generally applicable criminal laws do *not* apply to everyone in our society. In the majority's view, while all other citizens of the United States must do their jobs and live their lives within the confines of criminal prohibitions, the President cannot be made to do so; he must sometimes be exempt from the law's dictates depending on the character of his conduct. Indeed, the majority holds that the President, unlike anyone else in our country, is comparatively free to engage in criminal acts in furtherance of his official duties.

That point bears emphasizing. Immunity can issue for Presidents under the majority's model even for unquestionably and intentionally egregious criminal behavior. Regardless of the nature or the impact of the President's criminal conduct, so long as he is committing crimes "pursuant to the powers invested exclusively in him by the Constitution," *ante*, at 607, or as needed "to carry out his constitutional duties without undue caution," *ante*, at 614, he is likely to be deemed immune from prosecution.<sup>5</sup>

Ultimately, the majority's model simply sets the criminal law to one side when it comes to crimes allegedly committed

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<sup>5</sup>To fully appreciate the oddity of making the criminal immunity determination turn on the character of the President's responsibilities, consider what the majority says is one of the President's "conclusive and preclusive" prerogatives: "[t]he President's power to remove . . . those who wield executive power on his behalf." *Ante*, at 608 (quoting *Seila Law LLC v. Consumer Financial Protection Bureau*, 591 U. S. 197, 204 (2020)). While the President may have the authority to decide to remove the Attorney General, for example, the question here is whether the President has the option to remove the Attorney General by, say, poisoning him to death. Put another way, the issue here is not whether the President has exclusive removal power, but whether a generally applicable criminal law prohibiting murder can restrict *how* the President exercises that authority.